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Lawson, Pettyjohn, Richardson, Wilson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 80

AN ACT TO AMEND TITLE 26 OF THE DELAWARE CODE RELATING TO RENEWABLE ENERGY PORTFOLIO STANDARDS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 354, Title 26 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 354. Renewable energy portfolio standards, eligible energy resources and industrial exemption.

(a) The total retail sales of each Retail Electricity Product delivered to Delaware end-use customers by a commission-regulated utility or municipal electric company during any given compliance year shall include a minimum percentage of electrical energy sales with eligible energy resources and solar photovoltaics as follows:

SCHEDULE I

Compliance Year (beginning June 1st)	Minimum Cumulative Percentage from Eligible Energy Resources	Minimum Cumulative Percentage from Solar Photovoltaics*
2018	17.50%	1.75%
2019	19.00%	2.00%
2020	20.00%	2.25%
2021	21.00%	2.50%
2022	22.00%	2.75%
2023	23.00%	3.00%
2024	24.00%	3.25%
2025	25.00% <u>10%</u>	3.50%
2026	25.50% <u>10%</u>	3.75% <u>3.50%</u>
2027	26.00% <u>10%</u>	4.00% <u>3.50%</u>
2028	26.50% <u>10%</u>	4.25% <u>3.50%</u>
2029	27.00% <u>10%</u>	4.50% <u>3.50%</u>

22	2030	28.00% <u>10%</u>	5.00% <u>3.50%</u>
23	2031	30.00% <u>10%</u>	5.80% <u>3.50%</u>
24	2032	32.00% <u>10%</u>	6.60% <u>3.50%</u>
25	2033	34.00% <u>10%</u>	7.40% <u>3.50%</u>
26	2034	37.00% <u>10%</u>	8.40% <u>3.50%</u>
27	2035	40.00% <u>10%</u>	10.00% <u>3.50%</u>
28	<u>2036</u>	<u>11%</u>	<u>3.75%</u>
29	<u>2037</u>	<u>12%</u>	<u>4.00%</u>
30	<u>2038</u>	<u>13%</u>	<u>4.25%</u>
31	<u>2039</u>	<u>14%</u>	<u>4.50%</u>
32	<u>2040</u>	<u>15%</u>	<u>5.00%</u>
33	* Minimum Percentage from Eligible Energy Resources Includes the Minimum Percentage from Solar		
34	Photovoltaics.		

SYNOPSIS

The Renewable Portfolio Standard (RPS) is the percentage of electricity that utilities must source from renewables. This is presently set at 25% and will increase annually, culminating at 40% in 2035.

Delaware does not currently have enough renewable energy to meet the present mandate, let alone future RPS requirements. Renewable energy is also in short supply on the regional power grid. If it is available, consumers are paying additional distribution charges to transmit it to Delaware. If renewable energy is not obtainable, Delaware utilities are paying penalties to the state for failing to achieve the RPS mandate. In each of the last two years, Delmarva Power has spent about \$13 million annually in such state mandated compliance fees. All these cost multipliers are being passed along to consumers, making power more expensive for Delaware ratepayers.

This bill recognizes the current flawed public energy policy that has resulted in renewable energy demand significantly outpacing supply. This legislation seeks to provide relief to Delawareans by rolling back the Renewable Portfolio Standard to 10% and maintaining the RPS requirement for the next 10 years, providing sufficient time for renewable generation capacity to meet demand. After the 10-year period expires, the RPS percentage will resume scheduled annual increases.